

The Code of Criminal Procedure (Assam Amendment) Act, 1984

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State of Assam - Act

The Code of Criminal Procedure (Assam Amendment) Act, 1984

ASSAM

India

The Code of Criminal Procedure (Assam Amendment) Act, 1984

Act 8 of 1984

Published on 7 April 1984

Commenced on 7 April 1984

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The Code of Criminal Procedure (Assam Amendment) Act, 1984

Assam Act

No. 8 of 1984

Last Updated 11th February, 2020

Published in the Assam Gazette, Extraordinary, dated 7-4-1984.

[Received the assent of the President on 7th April, 1984]

An Act further to amend the Code of Criminal Procedure (Assam Amendment) Act, 1983 (Assam Act

No. 3 of 1984

)

Whereas it is expedient further to amend the Code of Criminal Procedure (Assam Amendment) Act, 1983 (Assam Act,

No. 3 of 1984

) hereinafter called the Act, in the manner hereinafter appearing;

It is hereby enacted in the Thirty-fifth Year of the Republic of India, as follows:

1.

Short title, extent and commencement.

- (i) This Act may be called the Code of Criminal Procedure (Assam Amendment) Act, 1984.

(ii)

It shall come into force at once.

(iii)

It extends to the whole of the State of Assam.

2.

Amendment of Section I of Assam Act

No. 3 of 1984

.

- In this Act in Section I,-

(a)

the Clause (ii) shall be substituted as follows:

"(ii) It shall be deemed to have come into force on the date of expiration of the Code of Criminal Procedure (Assam Amendment) Ordinance, 1983 (Assam Ordinance No. 3 of 1983)."

(b)

after Clause (iii), the following shall be inserted as new Clause (iv), namely:

"(iv) It shall be in operation for a period of one year."

3.

Amendment of Section 2 of Assam Act

No. 3 of 1984

.

- In the Act, in Section 3, in sub-section (2) (b), after the words "Indian Penal Code", the colon (:) shall be deleted and thereafter the following shall be inserted, namely:

"with imprisonment which may extend to three years or with fine or with both."

4.

Insertion of Section 6.

- In the Act, after Section 5, the following shall be inserted as a new Section 6, namely:

"6. Repeal and savings. - (1) The Code of Criminal Procedure (Assam Amendment) Ordinance, 1983 (Assam Ordinance No. 3 of 1983) is hereby repealed.

(2)

Notwithstanding such repeal-

(a)

any action taken or any order passed or any proceedings commenced or anything whatsoever done under the Ordinance so repealed shall continue and be deemed to have continued and shall have effect as if taken, passed, commenced or done under the corresponding provisions of this Act.

(b)

Any action taken, order passed, or other acts and things done by any officer acting or purporting to act under the Ordinance so repealed shall be valid and shall be deemed always to have been valid and shall not be called in question in any Court on the ground of incompetency of the Officer to act under the Ordinance so repealed."

5.

Repeal and savings.

(1)

The Code of Criminal Procedure (Assam Amendment) Ordinance, 1984 (Assam Ordinance No. 3 of 1984) is hereby repealed.

(2)

Notwithstanding such repeal, any action taken or any order passed or any proceedings commenced or anything whatsoever done under the Ordinance so repealed shall continue and be deemed to have continued and shall have

effect as if taken, passed, commenced or done under the corresponding provisions of this Act.

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